

April 23, 2020



U.S. Department  
of Transportation

East Building, PHH-30  
1200 New Jersey Avenue S.E.  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 11827  
(THIRTY-SECOND REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the transportation in commerce of certain lined: UN Portable Tanks, UN standard DOT Specification IM 101 portable tanks and UN 31A Intermediate Bulk Containers (IBCs) which are not subject to the internal visual inspections required by §§ 180.352(b)(3) or 180.605(c)(1). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
  - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 180.352(b)(3) and 180.605(c)(1) in that internal visual inspection is not required.
5. BASIS: This special permit is based on the application of FUJIFILM Electronic Materials U.S.A., Inc., dated October 7, 2019 submitted in accordance with §§ 107.109, 107.105, and the public proceeding thereon.

Tracking Number: 2019104168

6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous Materials Description                                                                                                                            |                           |                               |                  |
|------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------|-------------------------------|------------------|
| Proper shipping name                                                                                                                                       | Hazard Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
| Ammonia solution, <i>relative density between 0.880 and 0.957 at 15 degrees C in water, with more than 10 percent but not more than 35 percent ammonia</i> | 8                         | UN2672                        | III              |
| Ammonium fluoride                                                                                                                                          | 6.1                       | UN2505                        | III              |
| Corrosive liquids, toxic, n.o.s. (Tetramethylammonium Hydrogen Carbonate)                                                                                  | 8                         | UN2922                        | III              |
| Cyclohexanone                                                                                                                                              | 3                         | UN1915                        | III              |
| Hydrochloric acid, solution                                                                                                                                | 8                         | UN1789                        | II               |
| Hydrofluoric acid, solution                                                                                                                                | 8                         | UN1790                        | II               |
| Hydrogen peroxide, aqueous solutions <i>with not less than 20 percent but not more than 40 percent hydrogen peroxide (stabilized as necessary)</i>         | 5.1                       | UN2014                        | II               |
| Hydrogen peroxide, aqueous solutions <i>with more than 40 percent but not more than 60 percent hydrogen peroxide</i>                                       | 5.1                       | UN2014                        | II               |
| Isopropanol or Isopropyl alcohol                                                                                                                           | 3                         | UN1219                        | II               |
| Nitric acid <i>other than red fuming, with at least 65 percent, but not more than 70 percent nitric acid</i>                                               | 8                         | UN2031                        | II               |
| Phosphoric acid solution                                                                                                                                   | 8                         | UN1805                        | III              |

| Hazardous Materials Description                     |                           |                       |               |
|-----------------------------------------------------|---------------------------|-----------------------|---------------|
| Proper shipping name                                | Hazard Class/<br>Division | Identification Number | Packing Group |
| Sulfuric acid <i>with more than 51 percent acid</i> | 8                         | UN1830                | II            |
| Tetramethylammonium hydroxide solution              | 8                         | UN1835                | II and III    |

7. SAFETY CONTROL MEASURES:a. PACKAGING: Packagings prescribed are:

- (1) Fluoroclad PTFE lined UN Portable Tanks, DOT IM 101 portable tanks or UN31A Intermediate Bulk Containers.
- (2) All tanks and IBCs must be in dedicated service.
- (3) Each tank used under this special permit must be identified in writing to the Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD).

b. TESTING:

(1) Each portable tank must be tested and inspected as specified for DOT IM 101 and UN portable tanks in § 180.605(c) except that the internal visual inspection is waived. In lieu of opening the tanks for internal inspection, the lining inspection procedure recommended by Nisshin Gulf Coast, Inc., Nisshin Corporation (lining installers) or Sun Fluoro System Co., Ltd. on file with the OHMSAPD must be followed. The procedure is summarized as follows:

- (i) Collect analysis data for Iron (Fe) contamination of the last loading of the portable tank as measured by ICP-MS or GFAA.
- (ii) If the after-filling contamination levels are 50 ppb or greater, a defect in the tank lining is indicated. If the exterior valves, piping, etc. used to load the tank are free from defects,

**April 23, 2020**

and any other possible sources of contamination have been eliminated, the tank lining must be inspected visually and by spark testing.

(2) Each IBC must be tested and inspected as specified for UN 31A IBCs in § 180.352(b) except that the internal visual inspection is waived. In lieu of opening the tanks for internal inspection, the lining inspection procedure recommended by Sun Floro Systems Co., Ltd. (lining installers) on file with the OHMSAPD must be followed. The procedure is summarized as follows:

(i) Collect analysis data for Iron (Fe) contamination of the last loading of the IBC as measured by ICP-MS or GFAA.

(ii) If the after-filling contamination levels are 50 ppb or greater, a defect in the IBC is indicated. If the exterior valves, piping, etc. used to load the tank are free from defects, and any other possible sources of contamination have been eliminated, the IBC must be inspected visually and by spark testing.

c. OPERATIONAL CONTROLS: The special permit holder must maintain records of product contamination for each shipment, as described above. The analysis of product contamination must be completed before the tank or IBC is refilled and, in any case, within 15 days after the lading is unloaded. Records of contamination analysis must be retained for at least the five most recent shipments. The special permit holder shall certify, to inspection facility, that containers covered under this permit meet the criteria for visual inspection exemption: "Meets criteria for exemption from interior visual inspection per DOT-SP 11827".

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

**April 23, 2020**

- b. MARKING: Each portable tank or IBC must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-SP 11827".
- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: As authorized by the HMR.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
  - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
  - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term

**April 23, 2020**

"exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm) Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: LM/TG